

Maintenance and Welfare of Parents and Senior Citizens Act, 2007

Authority: Ministry of Social Justice and Empowerment, Government of India

Year: 2007

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Section 4. Maintenance of parents and senior citizens

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(1) A senior citizen including parent who is unable to maintain himself from his own earning or out of property owned by him, shall be entitled to make an application under section 5 against one or more of his children or legal heirs who are of full age and have sufficient means.

Section 9. Order for maintenance

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(1) If children or relatives, as the case may be, neglect or refuse to maintain a senior citizen being unable to maintain himself, the Maintenance Tribunal may, on being satisfied of such neglect or refusal, order such children or relatives to make a monthly allowance at such monthly rate for the maintenance of such senior citizen.

Section 23. Transfer of property to be void in certain circumstances

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(1) Where any senior citizen who, after the commencement of this Act, has transferred by way of gift or otherwise, his property, subject to the condition that the transferee shall provide the basic amenities and basic physical needs to the transferor and such transferee refuses or fails to provide such amenities and physical needs, the said transfer of property shall be deemed to have been made by fraud or coercion or under undue influence and shall at the option of the transferor be declared void by the Maintenance Tribunal.

Section 24. Exposure and abandonment of senior citizen

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Whoever, having the care or protection of senior citizen, leaves, such senior citizen in any place with the intention of wholly abandoning such senior citizen, shall be punishable with imprisonment of either description for a term which may extend to three months or with fine which may extend to five thousand rupees or with both.